

# CITY MANAGEMENT

## Coordination Sheet

|                                     |                                                                                                                                                                                                                                |                                                     |                        |                    |
|-------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------|------------------------|--------------------|
| <b><u>FROM:</u></b>                 | HR                                                                                                                                                                                                                             |                                                     |                        |                    |
| <b><u>DATE:</u></b><br>Jun 08, 2018 |                                                                                                                                                                                                                                | <b><u>NAME</u></b>                                  | <b><u>INITIALS</u></b> | <b><u>DATE</u></b> |
|                                     |                                                                                                                                                                                                                                | Mr. Kyle Kinatader<br>Executive Director            |                        |                    |
|                                     | X                                                                                                                                                                                                                              | Mr. Dudley Wait<br>Executive Director               | <i>DW</i>              | 6/12/18            |
|                                     | X                                                                                                                                                                                                                              | Ms. Sarah Gonzalez<br>Assistant to the City Manager | <i>SG</i>              | 6/12/18            |
|                                     | X                                                                                                                                                                                                                              | Mr. Brian James<br>Acting City Manager              | <i>BJ</i>              | 6-8-18             |
| <b><u>COMMENTS:</u></b>             | <p>Contract with CivicPlus / CivicHR<br/>to participate in beta testing of<br/>Employee Self Service module</p> <p><i>Make sure all employees involved are<br/>aware of confidentiality requirements.</i></p> <p><i>BJ</i></p> |                                                     |                        |                    |
| <b><u>RETURN TO:</u></b>            | <p style="text-align: center;">JESSICA<br/>HR/PURCHASING</p>                                                                                                                                                                   |                                                     |                        |                    |

**CITY OF SCHERTZ**  
**CONTRACT APPROVAL FORM**

**A. To be completed by Department**

1. Contract with: CivicPlus Contract amount: \$ No cost
2. Contract for: Participate in beta testing of new HR employee module
3. Fund/Account to be charged: \_\_\_\_\_ Dept. Human Resources
4. Contract category and amount in the budget: ☐ yes ☐ no – budget adjustment required  
Budget Amendment Ord/Res Number: \_\_\_\_\_ Date: \_\_\_\_\_
5. Contract required to be bid: ☐ yes ☒ no (If unsure, contact Purchasing.)  
Bidding completed: ☐ yes ☒ NA (bidding not required)  
Bidding exemption: (if bidding is not required state reason): \_\_\_\_\_
6. Contract termination date: \_\_\_\_\_ ☒ NA
7. Terms of contract reviewed and approved by Department Head: ☒ yes
8. Is Executive Director aware of contract? ☒ yes
9. If going to Council, is City Manager aware of contract? ☐ yes ☒ NA
10. Department Head's signature: [Signature] Date: 6/8/18

**B. To be completed by Purchasing and Asset Management**

1. FINANCE
  - a. Contract amount in the budget: ☐ yes ☐ no – budget adjustment required
  - b. Fund/Account to be charged: \_\_\_\_\_
  - c. Finance Director's signature: \_\_\_\_\_ Date: \_\_\_\_\_
2. LEGAL
  - a. Contract reviewed and approved by City Attorney ☐ not requested ☒ yes (attach email approval)
  - b. Date Reviewed and Approved by City Attorney \_\_\_\_\_
3. PURCHASING
  - a. Vendor aggregate POs <\$50K for budget period ☐ yes ☒ no
  - b. Contract reviewed for insurance, warranty, term, severability and indemnity requirements: ☒ yes
  - c. Contract properly bid in accordance with City Purchasing Policy ☐ yes ☒ NA
  - d. Vendor signature obtained ☐ yes ☒ no (other party requires signature by City first)
  - e. Purchasing and Asset Management Signature: \_\_\_\_\_ Date: \_\_\_\_\_
4. COUNCIL APPROVAL REQUIRED? ☐ yes ☐ no ☒ NA (Required over \$50,000)
  - a. Date of City Council approval: \_\_\_\_\_ Res/Ord #: \_\_\_\_\_ ☐ Attached
  - b. If not approved by City Council, state reason: \_\_\_\_\_

**C. To be completed by Executive Director:**

1. Final contract reviewed and recommend City Manager signature: ☒ yes ☐ no
2. Executive Director's Signature: [Signature] Date: 6/12/18

**D. To be completed by Assistant to the City Manager**

1. Assistant reviews and obtains CM signature Assistant Signature: [Signature]
2. Signed contract is given to Purchasing & Asset Management. 6/12/18

**E. To be completed by Purchasing and Asset Management**

1. Date fully-executed contract received by Purchasing: 6/14/18
2. Date filed to Laserfiche: 6/15/18 Filed as: \_\_\_\_\_



## ALPHA-TESTER NON-DISCLOSURE AGREEMENT

This **Alpha-Tester Non-Disclosure Agreement** ("Agreement") is made and entered into this \_\_\_\_ day of \_\_\_\_\_, 20\_\_\_\_ (the "Effective Date") by City of Schertz, a local government whose principal mailing address is 1400 Schertz Pkwy, Schertz TX (the "Tester") for the benefit and safeguarding of **CivicPlus, Inc.**, a Kansas corporation having its principal place of business at 302 S. Fourth Street, Suite 500, Manhattan, Kansas, 66502 ("CivicPlus").

WHEREAS, Tester desires to agree to the terms this Agreement in order to enable Tester to test and evaluate the \_\_\_\_\_ ("Software"); and

WHEREAS, Tester in fact does agree to test the Software and maintain the Confidential Information in accordance with the terms and conditions set forth in this Agreement.

### 1. Confidential Information.

"Confidential Information" means all information, whether written or oral, and in any form (including, without limitation, Software (in source or object code), engineering documents, manuals, reports, designs, drawings, plans, flowcharts, program listings, data file printouts, processes, component part listings and prices, product information, new product plans, sales and marketing plans and/or programs, and pricing information) relating to CivicPlus' beta-tested products or services which is disclosed either directly or indirectly to Tester.

### 2. Confidentiality

a. Tester acknowledges that as a beta tester, Tester may have access to, and CivicPlus may disclose to Tester, certain Confidential Information as described in Section 1. Tester will use care and caution in the use and any necessary disclosure of the Confidential Information. In the event Tester is required to disclose any Confidential Information, whether through an open records request or FOIA, Tester shall give notice to CivicPlus prior to any disclosure in order for CivicPlus to redact any Confidential Information which is detrimental to its business. Tester agrees to not use such Confidential Information for its own benefit or for the benefit of third parties.

b. Tester acknowledges that the test materials contain Confidential Information developed or acquired by CivicPlus and that all rights therein and in other CivicPlus' Confidential Information remain vested in CivicPlus. Tester agrees that it will only disclose that it is evaluating or testing or has evaluated or tested CivicPlus' product or services to any third party in the event Tester received a FOIA or open records request.

c. This Agreement shall impose no obligation on Tester to notify CivicPlus regarding any portion of the Confidential Information which: (i) now or hereafter, through no act or failure to act on Tester's part, becomes generally known or available; (ii) is known to Tester at the time Tester receives same from CivicPlus as evidenced by written records; (iii) is hereafter furnished to Tester by a third party who legally obtained Confidential Information and without restriction on disclosure.

d. Tester agrees to respect and abide by all intellectual property laws regarding trade secrets as they apply to the Confidential Information and all copies thereof.

### 3. Software a Trade Secret.

a. The Software is proprietary and a valuable trade secret of CivicPlus. It is entrusted to Tester only for the purpose set forth in this Agreement. Tester will use reasonable efforts to maintain Software in the strictest confidence. Tester will use reasonable efforts to give notice to CivicPlus and obtain CivicPlus' prior written consent:

- i. Disclose any information about the Software, its design and performance specifications, its code, and the existence of the beta test and its results to anyone other than Tester's employees who are performing the testing;
- ii. Copy any portion of Software or documentation, except to the extent necessary to perform beta testing; or
- iii. Reverse engineer, decompile or disassemble Software or any portion of it.

### 4. Proprietary rights; No right to Copy, Modify, or Disassemble.

a. The Confidential Information provided by CivicPlus and all copies thereof, are proprietary to and the property of CivicPlus. All applicable rights in all copyrights, trademarks, trade secrets, trade names, patents and other intellectual property rights in or associated with the Confidential Information are and will remain in CivicPlus and Tester shall have no such intellectual property rights in the Confidential Information.





b. Tester may not copy or reproduce the Confidential Information without CivicPlus's prior written consent, except as required by the Kansas Open Records Act, or as reasonably needed to perform its obligations as a beta tester and subject to the following restrictions. Each copy of Software or documentation made by Tester must contain CivicPlus's proprietary and copyright notices in the same form as on the original. Tester shall not remove or deface any portion of any legend provided on any part of the Confidential Information.

c. Tester shall not reverse engineer, alter, modify, disassemble or decompile any Confidential Information, or any part thereof, without CivicPlus's prior written consent.

#### **5. Right to protect Confidential Information.**

If Tester is required, for any reason, to disclose any Confidential Information, Tester shall promptly notify CivicPlus in writing of such request or requirement so that CivicPlus may seek an appropriate protective order or other relief. Tester agrees to cooperate with and not to oppose any effort by the CivicPlus to resist or narrow such request or to seek a protective order or other appropriate remedy. In any case, Tester will (a) disclose only that portion of the Confidential Information that, according to the advice of Tester's counsel, is required to be disclosed (and Tester disclosure of Confidential Information to Tester's counsel in connection with obtaining such advice shall not be a violation of this Agreement), (b) use reasonable efforts (at the expense of CivicPlus) to obtain assurances that such Confidential Information will be treated confidentially, and (c) promptly notify CivicPlus in writing of the items of Confidential Information so disclosed.

#### **6. No Warranty.**

CivicPlus makes no warranty, express nor implied, as to any Confidential Information that it may provide hereunder, including without limitation as to the accuracy of the Confidential Information, as to whether any new products will be produced as disclosed, or as to the availability of product(s) on any specific date.

#### **7. No Rights Granted.**

This Agreement does not constitute a grant or an intention to commitment to grant any right, title or interest in any Confidential Information, the Software or CivicPlus' trade secrets to Tester. Tester may not sell or transfer any portion of Software to any third party or use Software in any manner to produce, market or support its own products. Tester shall not identify all Confidential Information as coming from any source other than CivicPlus.

#### **8. Term and Termination.**

a. The term of this Agreement shall begin on the Effective Date and shall continue until terminated as set forth below.

b. This Agreement may be terminated at any time for any reason by either party giving ten days prior written notice to the other party, subject to Section 7(c) below.

c. Upon termination of this Agreement, Tester agrees to (a) return the Confidential Information and all copies thereof to CivicPlus, if requested by CivicPlus in writing to do so, within seven days after such termination, or (b) if requested by CivicPlus to do so, and in compliance with the City's Record Retention Policy, certify to CivicPlus in writing that the Confidential Information and all copies thereof have been destroyed.

#### **9. Waiver.**

A waiver of any default hereunder or of any of the terms and conditions of this Agreement shall not be deemed to be a continuing waiver or a waiver of any other default or of any other term or condition, but shall apply solely to the instance to which such waiver is directed.

#### **10. Severability.**

If any part of this Agreement shall be invalid or unenforceable, such invalidity or unenforceability shall not affect the validity or enforceability of any other part or provision of this Agreement which shall remain in full force and effect.

#### **11. Limitation of Liability.**

CivicPlus shall not be responsible for any loss or damage to Tester or any third parties caused by the Software. CIVICPLUS SHALL NOT BE LIABLE FOR ANY DIRECT, INDIRECT, SPECIAL, INCIDENTAL OR



CONSEQUENTIAL DAMAGE, WHETHER BASED IN CONTRACT OR TORT OR ANY OTHER LEGAL THEORY, ARISING OUT OF ANY USE OF SOFTWARE OR ANY PERFORMANCE OF THIS AGREEMENT.

**12. Governing Law.**

This Agreement shall be governed by the laws of the State of Texas, excluding any such laws that might direct the application of the laws of another jurisdiction. The federal or state courts located in the State of Texas shall have exclusive jurisdiction to hear any dispute under this Agreement.

**13. Entire Agreement.**

This Agreement represents the entire agreement between the parties regarding the subject matter hereof and supersede any and all prior agreements between the parties, whether written or oral, regarding the subject matter hereof. This Agreement may not be modified or amended except by the written acceptance of both parties.

By signing this Agreement, Tester agrees to be bound by the terms and conditions stated herein.

**TESTER:**

By: 

Name: Brian James

Title: Acting City Manager

Date: 6-14-18